

Before the Federal Maritime Commission, Washington, DC.

Docket No. 25-08

FormuKleen, Inc.

(Complainant)

vs.

Top Shipping Systems, Corp.

(Respondent)

**COMPLAINANT’S MOTION TO ENFORCE APRIL 1, 2026 ORDER AS TO
REQUESTS FOR PRODUCTION NOS. 4 AND 7 AND FOR SANCTIONS**

Complainant FormuKleen, Inc., by and through its representative, moves to enforce the Presiding Officer’s April 1, 2026 Order granting Complainant’s Motion to Compel as to Requests for Production Nos. 4 and 7 (“RFP Nos. 4 and 7”), and for sanctions under 46 C.F.R. § 502.150(b) based on Respondent Top Shipping Systems, Corp.’s (“TSS”) failure to comply with that Order.

This motion concerns the two subject containers: CHSU4047424 and BSIU8431017.

I. The April 1, 2026 Order Compelled RFP Nos. 4 and 7

RFP No. 4 required production of “all TSS communications with parties other than FormuKleen relating to all FormuKleen shipments managed by TSS, including the subject shipments.” Respondent objected as overly broad. The Presiding Officer rejected that objection, finding Respondent’s arguments “off-mark” and ruling that Respondent’s third-party communications, routine practices, and operational conduct are relevant to whether Respondent acted as an NVOCC. Order at 11. The Presiding Officer specifically found that “almost any communication between Respondent and any third party is potentially relevant.” *Id.* Respondent was ordered to supplement its response no later than April 15, 2026 (later extended to April 29, 2026). The April 1 Order also compelled RFP No. 7, which sought records of duties, drayage,

warehousing, storage, port-related, or other charges paid or advanced by TSS on behalf of FormuKleen.

II. Respondent's Production Is Facially Incomplete

Respondent identified RX1071-RX1114 as its supplemental production responsive to RFP No. 4. In response to Complainant's deficiency correspondence, Respondent stated that it was Respondent's "understanding that there are no further written correspondences to be produced in this regard," while also stating that it was "in communication with TSS to confirm same." Respondent did not produce the missing third-party communications and did not identify the Bates ranges where those communications allegedly appear.

The production does not contain the complete TSS communications with the third parties that handled, transported, stored, released, routed, or diverted the subject containers, including:

- CMA CGM;
- DHY Shipping Line Inc.;
- Ningbo Qichen International Logistics Co., Ltd.;
- Topsealand International Co., Limited;
- Dolphin Logistics;
- Seablue Freight Container Inc.;
- South Florida Container Terminal or any other port terminal; and
- Any warehouse, trucking company, or other vendor involved in the handling of either subject container.

These are not hypothetical entities. Respondent's declaration identifies only two third-party email search criteria, while Respondent's supplemental interrogatory responses identify multiple third parties involved in the handling, transportation, storage, release, or diversion of the subject shipments. There is no dispute that these third parties were involved. The complete communications between TSS and these entities are what the Order required Respondent to produce.

III. Respondent's Declaration Confirms the Searches Were Inadequate

Respondent's April 28, 2026 Declaration of Ricky Villena, filed pursuant to the April 1 Order, describes all searches performed. The Declaration states that TSS searched its Microsoft

Outlook email system for communications to or from the following third-party addresses: (1) zoe@dolphin-usa.com and (2) dispatch@seabluefreight.com. Declaration ¶ 15(f)-(g).

That is it. Two third-party email addresses. Respondent did not search for communications with CMA CGM, DHY Shipping Line, Qichen Logistics, Topsealand International Co., Limited, South Florida Container Terminal, or any terminal, warehouse, trucking company, or other carrier involved in the subject shipments.

Respondent's production also reflects additional transportation, logistics, carrier, and storage entities whose relationship to the subject containers cannot be determined from Respondent's incomplete and redacted production, including Jess Transport, RDJB, Logistics Freight Solutions LLC d/b/a PRIMO, AAA Cooper, Southeastern Freight, Western Express Moving and Storage, and potentially others. Those entities do not appear to have been identified in Respondent's supplemental interrogatory response, and Respondent's declaration does not identify searches for communications with them. Because Respondent's production is incomplete and redacted, Complainant cannot determine whether each of these entities was involved with CHSU4047424, BSIU8431017, or other FormuKleen shipments. That is precisely the problem. RFP No. 4 required TSS communications with parties other than FormuKleen relating to FormuKleen shipments, including the subject shipments. Respondent should be required to confirm whether it searched for and produced communications with each third-party transportation, logistics, carrier, terminal, warehouse, or vendor entity reflected in its production concerning CHSU4047424 and BSIU8431017.

The deficiency is especially significant because Respondent's Declaration confirms that TSS's electronic communications are maintained in Microsoft Outlook (¶ 7) and that shipment documents are maintained in the Magaya Freight Management Platform (¶ 6). Respondent therefore identified the systems where responsive communications and shipment-related records would be expected to reside, but its sworn search description does not show searches reasonably calculated to locate the complete communications with the third parties involved in the subject shipments.

The Declaration further confirms that these systems store records for "each and every shipment handled by TSS" (¶ 6) and that "[t]here are no additional document locations to be searched, nor searches to be performed" (¶ 17). Respondent is now locked into this position

under penalty of perjury. The searches described in the Declaration are facially inadequate to capture the complete communications required by the April 1 Order. Searching for two third-party email addresses does not satisfy an order requiring production of all communications with parties other than FormuKleen relating to FormuKleen shipments. The Order's scope is not limited to parties Respondent chose to search for.

IV. The "Verbal Discussions" Explanation Does Not Satisfy the Order

The Declaration states that "from time to time" discussions concerning customers "are verbal" and that "TSS does not maintain a written log of such verbal discussions." Declaration ¶ 16. This does not account for the absence of third-party communications concerning the subject containers.

Containers do not release from port terminals, get routed to third-party facilities, get picked up by drayage vendors, get delivered to warehouses, incur storage charges, or get diverted to Respondent's own warehouse based on undocumented verbal exchanges alone. Those acts require coordination with third parties through written or electronic communications-emails, dispatch instructions, delivery orders, release authorizations, booking confirmations, or portal messages. Some form of written or electronic communication necessarily existed if the containers were handled in the manner Respondent itself describes.

Respondent's generalized statement about verbal discussions is not responsive to an order compelling production of third-party communications.

V. Respondent's Redactions Within the RFP No. 4 and No. 7 Production Further Undermine Its Claim of Compliance

Within the Bates range Respondent identified as its supplemental RFP No. 4 production, RX1071-RX1114, Respondent redacted portions of several pages, including RX1093 and RX1095-RX1096. Respondent's redactions within the RFP No. 4 production further undermine its claim that it complied with the April 1 Order. Respondent produced redacted communications within the RX1071-RX1114 range while claiming that its production is complete, but Respondent's explanation for at least some of those redactions is contradicted by the face of the documents.

In its May 6 discovery-conferral response, Respondent represented that RX1093 and RX1095-RX1096 were redacted because they "identify TSS's other clients and discuss

shipments not related to FormuKleen's shipments." The visible portions of those pages show otherwise. RX1093-RX1095 appear in an email thread between TSS and Sea Blue Freight Container with a subject line referencing "MRSU7214464 / IMP37231-01 / Formukleen." The visible text concerns a FormuKleen shipment and includes discussion of an appointment secured by Sea Blue. Those redactions therefore appear inside FormuKleen-related third-party communications, not merely unrelated customer communications.

Respondent's May 6 discovery-conferral response confirms the same problem as to payment-related records. Respondent identified multiple redacted payment-related pages that it claimed reflected "payments made by TSS to carriers for shipments not related to FormuKleen's shipments," and other pages that it claimed contained bank information for third parties. Complainant submits selected examples of those redactions as Confidential Exhibit A to show the Presiding Officer the nature, extent, and context of Respondent's redaction practice. Where Respondent redacts records so heavily that Complainant cannot determine the shipment, customer, carrier, charge, payment, or transaction involved, Complainant cannot test Respondent's unilateral assertion that the redacted material is unrelated, nonresponsive, or properly withheld. This is especially concerning because the April 1 Order compelled RFP No. 7 along with RFP No. 4, and RFP No. 7 concerns duties, drayage, warehousing, storage, port-related, and other charges paid or advanced by TSS on behalf of FormuKleen.

Respondent's selective redactions also undermine its explanation. The production leaves visible FormuKleen-related customer, vendor, shipment, bill of lading, carrier, invoice, and charge information, while redacting portions Respondent characterizes as unrelated, confidential, or nonresponsive. That is not a consistent protective-order application; it is a selective withholding practice that prevents Complainant from testing whether the redacted information is actually unrelated or properly withheld.

Respondent should not be permitted to avoid scrutiny of compelled third-party communications or charge/payment records by redacting the very information necessary to determine whether the records relate to FormuKleen or the subject shipments. Respondent should be required to justify those redactions, submit the redacted material for in camera review, or produce the material unredacted subject to the Protective Order.

VI. Complainant Attempted to Resolve This Without Motion Practice (Duty to Confer)

Complainant attempted to resolve this issue without motion practice.

On April 30, 2026, Complainant identified the RFP No. 4 deficiency to Respondent.

Complainant specifically advised Respondent that its supplemental production appeared facially incomplete as to the two subject containers, CHSU4047424 and BSIU8431017, including the absence of comparable third-party communications for BSIU8431017, the absence of communications with CMA CGM, DHY Shipping Line Inc., and Ningbo Qichen International Logistics Co., Ltd., and the absence of third-party communications or dispatch records reflecting the instruction, routing, delivery address, delivery order, appointment, or other direction by which either subject container was diverted or delivered to TSS's warehouse rather than to FormuKleen. Complainant asked Respondent to supplement RFP No. 4 or identify the specific Bates ranges where the missing communications appeared.

On May 6, 2026, Respondent replied under a subject line characterizing the correspondence as "without prejudice, confidential settlement communications," even though the substance of the email concerned discovery production, redactions relevant to RFP No.7, RFP No. 4, Respondent's declaration, and whether additional responsive documents existed.¹ In that response, Respondent relied on its declaration and stated that it was Respondent's "understanding that there are no further written correspondences to be produced in this regard," while also stating that it was "in communication with TSS to confirm same." Respondent did not produce the missing third-party communications and did not identify the Bates ranges where those communications allegedly appeared.

Also on May 6, 2026, Respondent provided a link to a revised production, stating that certain redactions were inadvertent and had been amended. That revised production did not cure the RFP No. 4 deficiency. It addressed redactions; it did not provide the missing third-party communications required by the April 1 Order.

¹Respondent repeatedly altered the discovery-conferral email threads to relabel the correspondence as "without prejudice, confidential settlement communications," although the substance of the correspondence concerned discovery production, redactions, RFP No. 4, Respondent's declaration, and whether additional responsive documents existed. The label appears calculated to shield discovery-conferral correspondence from the Presiding Officer's review by recasting it as settlement communication.

Later on May 6, 2026, Complainant responded in a separate discovery-conferral thread and expressly stated that the correspondence concerned Respondent's discovery obligations and deficiencies in Respondent's compelled RFP No. 4 production, and was not a settlement communication. Complainant again explained the RFP No. 4 deficiency and requested that Respondent either cure the deficiency or identify the responsive Bates ranges by 5:00 p.m. Central Time on May 7, 2026.

Respondent did not cure the deficiency by that deadline.

On May 8, 2026, Respondent stated that "All responsive documents uncovered in TSS's searches have been uploaded to the dropbox folder." That statement does not cure the deficiency. Respondent cannot satisfy the April 1 Order merely by asserting that it uploaded the documents its searches uncovered where the searches described in Respondent's own declaration were facially inadequate and the production still lacks the third-party communications RFP No. 4 compelled.

This motion is therefore necessary.

VII. The Missing Communications Go to the Core of This Case

The Presiding Officer has already found that whether Respondent acted as an NVOCC is a fact-intensive inquiry and that Respondent's third-party communications are "potentially relevant." Order at 11. The missing communications go directly to who controlled the subject containers, who gave instructions to drayage vendors and terminals, how the containers were released and routed, what charges were incurred and paid, and how container BSIU8431017 came to be diverted to Respondent's own warehouse without Complainant's authorization. These are the central facts in dispute.

The prejudice is compounded by the procedural history. On July 16, 2025, Complainant filed a Motion for Summary Judgment seeking a finding that Respondent acted as an NVOCC in relation to the subject shipments. The Presiding Officer denied that motion without prejudice, finding that additional discovery was needed to resolve questions of fact as to whether Respondent was acting as an NVOCC. MSJ Order at 7-8. The Presiding Officer specifically identified the need for additional information about Respondent's conduct, including whether Respondent purchased transportation services, paid port-to-port charges, entered into agreements

with underlying shippers, and how Respondent held itself out to the general public. MSJ Order at 7.

The documents withheld under RFP No. 4 are precisely the documents that would supply the facts the Presiding Officer identified as missing. Respondent's third-party communications would show how Respondent interacted with carriers, terminals, drayage vendors, and other logistics participants in connection with the subject shipments-the very conduct the Presiding Officer said he needed to evaluate. Respondent cannot withhold the evidence that would resolve the factual question the Presiding Officer identified and then benefit from the resulting gap in the record. Under 46 C.F.R. § 502.150(b)(1), the appropriate sanction is to deem established the facts Complainant's Motion for Summary Judgment sought to prove.

Complainant should not be required to repeatedly litigate a request the Presiding Officer already compelled.

VIII. Sanctions and Relief Under 46 C.F.R. § 502.150(b)

Under 46 C.F.R. § 502.150(b), where a party fails to obey an order requiring it to respond to discovery requests, the Presiding Officer may:

- “(1) Direct that the matters included in the order or any other designated facts must be taken to be established for the purposes of the action as the party making the motion claims;
- (2) Prohibit the disobedient party from supporting or opposing designated claims or defenses, or from introducing designated matters in evidence; or
- (3) Strike pleadings in whole or in part; staying further proceedings until the order is obeyed; or dismissing the action or proceeding or any party thereto, or rendering a decision by default against the disobedient party.”

Respondent has failed to comply with the April 1 Order. Respondent received an extension of time to comply. Respondent then served a production that remains facially incomplete as to the subject containers. Respondent's own sworn declaration confirms that the searches performed were inadequate to capture the complete communications the Order required. Respondent now represents that its production is complete.

The appropriate remedy is enforcement with consequences, not another open-ended opportunity to delay. Respondent should not receive yet another consequence-free opportunity to comply with an order it has already failed to satisfy.

IX. Request for Relief

Complainant respectfully requests that the Presiding Officer:

1. Order Respondent to immediately produce all TSS communications with parties other than FormuKleen concerning CHSU4047424 and BSIU8431017, including communications with CMA CGM, DHY Shipping Line Inc., Ningbo Qichen International Logistics Co., Ltd., Topsealand International Co., Limited, Dolphin Logistics, Seablue Freight Container Inc., South Florida Container Terminal, and any other third party involved in the handling, transportation, storage, release, routing, delivery, charges, or diversion of either subject container;
2. Order Respondent to identify by Bates range any documents Respondent contends already satisfy RFP No. 4 as to CHSU4047424 and BSIU8431017;
3. Order Respondent to produce a privilege log for any responsive communications withheld or redacted on privilege grounds;
4. Preclude Respondent from relying at hearing on any unproduced third-party communications concerning the subject containers;
5. Pursuant to 46 C.F.R. § 502.150(b)(1), deem established that Respondent acted as an NVOCC in relation to the subject shipments, or in the alternative reinstate and grant Complainant's Motion for Summary Judgment on that basis;
6. Draw an adverse inference, or in the alternative permit Complainant to argue, that the unproduced third-party communications would have been unfavorable to

Respondent; or, at minimum, impose such relief if Respondent fails to comply with the enforcement order;

7. Order Respondent to submit all redacted communications within RX1071-RX1114 and the heavily redacted payment-related records identified in Respondent's May 6 discovery-conferral response for in camera review; or, alternatively, order Respondent to produce unredacted versions subject to the Protective Order unless Respondent establishes a valid privilege or specific nonresponsive basis for each redaction;

8. Award Complainant its reasonable costs and any other relief available under the Commission's rules for having to seek enforcement of an order already entered and impose any sanctions the Presiding Officer deems appropriate;

9. Grant any further relief the Presiding Officer deems appropriate.

Respectfully submitted,

Sara Dandan



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Dated: 05/09/2026

CERTIFICATE OF SERVICE

I certify that on May 9, 2026, a true and correct copy of the foregoing was filed via electronic mail with the Federal Maritime Commission and the following known parties of record for the Respondent:

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